

SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST
VIRGINIA

Proceeding: Plaintiff's summary-judgment opposition.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt
Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Asterglen Opposition to Partial Summary Judgment

Filed November 24, 2025 — District ECF No. 49

Plaintiff Asterglen Freight Software, Inc. opposes Copper Kestrel Logistics, LLC's motion for summary judgment on Count I. Copper Kestrel treats Section 9.2 as if it resolved every question about the parties' June and July conduct. It does not. A jury could find that Copper Kestrel placed twenty-nine unlicensed terminals into operational use, continued after Asterglen identified limits, and represented that the commercial paperwork would follow. The parties also give materially different accounts of the July 8 conference. Those conflicts concern authorization, reliance, performance, and whether Copper Kestrel's conduct could still be cured in the manner contemplated by the agreement.

Asterglen recognizes that its July 22 written communication declared termination and demanded \$480,000 without providing a fifteen-calendar-day interval. It disputes Copper Kestrel's conclusion that this sequence defeats Count I as a matter of law. The June writings, July discussions, and July 18 audit must be considered together when deciding notice, waiver, substantial performance, and the purpose of the cure provision. The later reconstruction described by Copper Kestrel does not establish what would have happened in live operations. Summary judgment should be denied, leaving the factfinder to determine liability and any contract recovery.

Questions presented and governing standard

The motion presents a narrow legal theory but rests on a contested factual setting. First, did Section 9.2 make a formal fifteen-day notice the exclusive prerequisite to every remedy, even if Copper Kestrel had already rejected the operative license limits? Second, did the parties' communications supply actual notice or alter the expected sequence? Third, was a meaningful cure available after the disputed operational use had occurred? Asterglen submits that the evidence permits more than one reasonable answer to each question. It does not ask the Court to decide Count II against Meridian Silt or Copper Kestrel's counterclaim through this motion.

Under Rule 56, the movant must establish that no genuine dispute of material fact exists and that it is entitled to judgment under the governing law. The Court must view admissible evidence and reasonable inferences in the nonmovant's favor. It may not select among competing recollections, decide the weight of technical proof, or draw an inference for Copper Kestrel merely because that party calls its account undisputed. Contract interpretation may present a legal question, but application of the language to disputed performance can remain for trial.

Copper Kestrel's motion assumes, solely for argument, activity outside written authorization. That assumption does not remove the disputes about how the excess activity began, what Copper Kestrel said it would do, or how the parties understood the July 8 call. Nor does it establish that a later controlled exercise precisely replicated the constraints existing on July 22. Because those points bear on breach, excuse, causation, and remedy, judgment on the whole contract count is not warranted.

The written agreement and the June communications

The April 15, 2024 Pilot License identified twelve terminals. Section 9.2 provides that a party will give written notice describing a material breach and allow fifteen calendar days to cure before terminating for that breach or seeking breach damages. Asterglen does not contend that the section vanished. It contends that the clause must be read with the parties' later conduct and the settled principle that a contracting party cannot insist upon a condition after making the promised opportunity ineffectual through its own refusal to conform.

On June 3, Copper Kestrel proposed adding twenty-nine terminals. The proposed change order was never signed. Asterglen's June 10 response permitted a controlled load test under written conditions while commercial review continued; it did not grant an unrestricted production license. Copper Kestrel then retained Meridian under a June 14 statement of work. Asterglen was not a party to that statement, and Meridian had no written authority to amend Asterglen's license. Yet by July 1 the platform reflected forty-one provisioned identifiers: the twelve licensed terminals and the twenty-nine proposed additions.

Those documents permit a finding that Copper Kestrel knew the expansion was conditional. Copper Kestrel's written responses admit that it understood the change order remained unsigned and that no later writing replaced the twelve-terminal schedule. ECF No. 49-1. The dispute is not whether Asterglen executed the commercial amendment; it did not. The dispute is whether Copper Kestrel nevertheless placed the added identifiers into uses beyond the limited June 10 test and, if so, whether its assurances and conduct affected Asterglen's obligation to repeat the limitation in a later formal notice.

July 8 communications remain disputed

The three participants recall the July 8 videoconference differently. Asterglen's corporate representative testified that permission extended only to the controlled test described in the June 10 conditions. Copper Kestrel's operations representative recalls authority to continue then-current activity while paperwork was completed, with monitoring and no further additions. Meridian's engineer recalls a direction to continue the current test but did not understand that direction as a permanent license grant or an executed amendment. No recording or agreed transcript exists.

Contemporaneous notes containing phrases such as “continue current test” and “paperwork open” do not eliminate the conflict. Those short entries could support Asterglen's limited-test account, and a jury could reject Copper Kestrel's broader interpretation. Conversely, the evidence could support Copper Kestrel's position that current activity was temporarily allowed. That choice depends on witness credibility, operational context, and the meaning the participants reasonably assigned to their words. It cannot be made on a paper motion.

Asterglen does not ask the Court to treat an express waiver of Section 9.2 as established. No witness testified that the section was expressly waived. The point is narrower: the July 8 statements bear on whether Copper Kestrel knowingly exceeded an agreed limitation, whether it promised to complete commercial approval, and whether it later took a position inconsistent with cure. The corporate excerpts attached to Copper Kestrel's own memorandum, ECF No. 43-5, and the testimony submitted with this opposition, ECF Nos. 49-2 and 49-3, preserve those opposing accounts. A summary-judgment ruling should not convert any one recollection into an agreed fact.

The audit and July 22 communication

Asterglen completed its compliance audit on July 18. The audit identified forty-one provisioned identifiers and activity that Asterglen believed exceeded its written test conditions. It was an internal assessment, not a Section 9.2 notice carrying a cure date. Four days later, Asterglen disabled a shared staging credential, declared immediate termination for material breach, and demanded \$480,000. The July 22 communication did not offer a future date for reduction to twelve terminals and therefore allowed zero days for a post-notice cure.

Those facts are undisputed, but their legal effect is not. Asterglen had repeatedly communicated that the additional twenty-nine terminals required approval and that the June activity was subject to testing limits. A reasonable factfinder could view Copper Kestrel's continued use, after those communications and the disputed July 8 assurance about paperwork, as a rejection of the contractual boundary rather than a correctable oversight. Actual knowledge is relevant to whether formal repetition would have served the clause's intended function, even if knowledge alone is not identical to the written notice described in Section 9.2.

Copper Kestrel also relies on events after the demand to characterize the situation as readily curable. Meridian continued technical work through July 25. The parties disagree about the status and purpose of that work, including whether it reflected ordinary mitigation, continuing operation, or steps toward separation. No terminal beyond the existing forty-one was added after July 22. Those circumstances may affect damages, but they do not conclusively prove that Copper Kestrel would have accepted Asterglen's asserted limit and completed an effective live cure during a formal interval.

The later exercise does not eliminate the cure dispute

The declaration at ECF No. 49-4 describes a later controlled exercise in a preserved technical environment. The exercise reduced forty-one identifiers to twelve within three business days. It froze new provisioning, mapped sessions, addressed shared routing references, disabled the twenty-nine added identifiers, and validated the remaining terminals. It reported no loss of completed shipment information and one cached-route warning that was corrected. Asterglen does not dispute that those tasks were completed under the stated test conditions.

The declaration does not establish that Copper Kestrel was willing to take those steps in July, or that live operational dependencies were identical. The declarant acknowledges differences between the preserved environment and then-current traffic. The exercise occurred with advance organization, defined participants, and a fixed objective. On July 22, the parties still disputed permission, responsibility, and the effect of ongoing Meridian work. Feasibility in a reconstructed setting is probative, but it is not conclusive evidence of acceptance, timeliness, or full performance during the original events.

Asterglen's position is therefore not that reducing the configuration was physically impossible. The evidence shows technical feasibility within three business days under controlled conditions. Asterglen argues that cure under Section 9.2 required more than changing an identifier count: it required Copper Kestrel to acknowledge the operative license limit, cease unauthorized operational activity, and address the consequences of the earlier use. Whether those conditions remained meaningfully available, and whether Copper Kestrel had manifested refusal, are factual questions. At minimum, the declaration should be weighed with the June writings, the July 8 conflict, and the actual July sequence rather than treated as dispositive by itself.

Section 9.2 does not support judgment on this submission

Copper Kestrel reads “before” in Section 9.2 as an absolute bar whenever the specified sequence is absent. Asterglen agrees that the clause ordinarily calls for written breach notice and a fifteen-calendar-day opportunity before termination or breach damages. It disagrees that the language answers whether performance of the condition was excused, substantially satisfied by the parties' communications, or rendered ineffectual by an announced refusal to observe the licensed scope. The agreement contains no express futility sentence, but silence does not resolve how generally applicable contract principles operate on contested facts.

The Court need not accept Asterglen's ultimate interpretation to deny the motion. The June 10 conditions placed Copper Kestrel on written notice that expanded activity had limits. The unsigned June 3 proposal confirmed that permanent authority had not been granted. Asterglen's July 8 account would permit a finding that those limits were reiterated. Copper Kestrel's broader account would support a different inference. The July 18 audit then documented what Asterglen regarded as noncompliance. Together, that proof could allow a factfinder to conclude that Copper Kestrel knew both the asserted breach and the corrective action Asterglen expected.

Asterglen acknowledges the force of Copper Kestrel's contrary argument: the July 22 communication itself provided no cure time, and a later exercise completed reduction in three business days. But Rule 56 does not allow a court to disregard conflicts simply because one inference appears stronger. If the clause is found unexcused and not substantially satisfied, the remedy consequence can be resolved at trial on a developed factual determination. The present motion instead asks for dismissal with prejudice of Count I, including all possible contract recovery, and reaches further than the limited undisputed sequence requires.

Damages and unresolved monetary issues

Count I requests \$480,000 from Copper Kestrel for the alleged contract breach. Asterglen's calculation includes asserted contract value and response-related costs associated with investigating and addressing the expanded configuration. Copper Kestrel disputes liability, causation, and the measure of those items. Those disputes are additional reasons not to decide the complete count through a motion directed primarily to a pre-suit condition. If the Court limits available remedies under Section 9.2, it should still determine whether any contract relief survives rather than assume the demand and every component necessarily rise or fall together.

Copper Kestrel's counterclaim seeks \$120,000 arising from the July 22 disablement. Its declaration divides that sum into \$36,000 for emergency dispatch labor, \$28,000 for temporary routing services, \$24,000 for customer credits, and \$32,000 for technical restoration and validation. ECF No. 49-5. Asterglen disputes whether those charges were caused by its conduct, reasonably incurred, properly allocated, or recoverable. No party should be awarded that amount through the present motion, and Asterglen does not concede an offset.

Count II requests \$360,000 from Meridian for alleged interference. It remains distinct from Count I, but it involves many of the same communications, witnesses, and technical events. Depending on later liability and damages findings, the pending claims could produce opposing monetary awards and a potential setoff. That overlap confirms the need for carefully limited findings. A ruling on Copper Kestrel's notice theory should not resolve Meridian's intent, validate one July 8 recollection, or establish the amount of any remaining claim.

Filing materials and requested relief

Asterglen submits five attachments with this opposition. ECF No. 49-1 contains Copper Kestrel's responses to interrogatories and requests for admission. ECF No. 49-2 contains excerpts from the Copper Kestrel operations deposition. ECF No. 49-3 contains excerpts from the Meridian engineer deposition. ECF No. 49-4 is the cure-feasibility declaration concerning the controlled three-business-day reduction. ECF No. 49-5 is the damages and potential-offset declaration concerning Copper Kestrel's asserted \$120,000. Each attachment retains its separate source and evidentiary purpose.

Read together, the materials confirm several points while leaving the central disputes intact. The license listed twelve terminals; the unsigned proposal concerned twenty-nine additions; forty-one identifiers had been provisioned by July 1; the parties dispute the scope of the July 8 permission; the audit occurred July 18; and Asterglen terminated and demanded \$480,000 on July 22 without a fifteen-day interval. They also show that Meridian worked through July 25 and that a later controlled exercise achieved reduction within three business days. None of those facts authorizes a court to select among the conflicting accounts of agreement and performance.

Asterglen respectfully requests that the Court deny District ECF No. 42. Alternatively, if the Court decides that Section 9.2 limits a category of relief, Asterglen asks that the ruling identify the precise consequence without determining Count II, Copper Kestrel's \$120,000 counterclaim, witness credibility, or disputed July 8 permission. The parties can then address the remaining liabilities and damages on evidence directed to those issues.

Respectfully submitted,

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